

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

September 4, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.D.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scsccourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	25CV473427	<i>Creditors Adjustment Bureau, Inc.</i> <i>v.</i> <i>Nevarez Moving Company LLC,</i> <i>et al.</i>	Hearing: Order of Examination On May 8, 2026, the Court ORDERED J. Orlando Nevarez, CEO of Defendant Judgment Debtor Nevarez Moving Company LLC, to appear personally on September 4, 2026 at 9:01 AM in Department 16 to give information regarding a money judgment against Defendant Judgment Debtor Nevarez Moving Company LLC (the “Order of Examination”). But on June 29, 2026, Plaintiff Judgment Creditor, Creditors Adjustment Bureau, filed a Declaration of Non Service regarding this Order of Examination on J. Orlando Nevarez, CEO of Nevarez Moving Company LLC. This Declaration states that the address where Plaintiff tried to serve this Order of Examination is a “Bad Address[;]” according to neighbors the address is vacant.” Declaration at ¶ 2 (filed: June 29, 2026). Because J. Orlando Nevarez, CEO of Nevarez Moving Company LLC, has not yet been served with the Order of Examination, the Court cannot issue a Civil Bench Warrant against him yet. The parties are to appear in person at this hearing on September 4, 2026 at 9:01 AM in Department 16 to discuss next steps in this case. SO ORDERED.
9:01 2			
9:01 3			
9:01 4			

9:01 5			
9:00 1	25CV475065	<i>Chandra Bambah v. Google LLC d/b/a YouTube, et al.</i>	Order on Defendant Google LLC’s Demurrer to Plaintiff’s First Amended Complaint See Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 2	25CV480264	<i>Lee Drone v. Peter D. Bear, et al.</i>	Order on Defendant Ian Goodman’s Motion to Quash Service of Summons See Line 2 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 3	25CV483126	<i>Fanbo Zhang v. Wen Luo, et al.</i>	Order on Defendant Wen Luo’s Anti-SLAPP Motion to Strike the Complaint and for Attorneys’ Fees and Costs See Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 4	25CV472081	<i>Shan Allen Laliberte, et al. v. F.S. Trucking Company, et al.</i>	Order on Plaintiff Laliberte’s Motion to Compel Defendant Daniel Bonilla Estacio to Respond to Plaintiff’s Requests for Production of Documents, Set One, and for Sanctions At the request of the moving party, this Motion is OFF CALENDAR. SO ORDERED.

9:00 5	22CV397444	<i>Swaminathan Nandakumar,</i> <i>et al.</i> <i>v.</i> <i>David Plagens, et al.</i>	Order on Cross-Complainants David Plagens and Lisa Plagens's Motion to enforce and clarify the Court's May 22, 2026 Order <i>See Line 5 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 6	24CV451814	<i>Yi Wei</i> <i>v.</i> <i>Tina Tipping Hsu</i>	Order on Defendant Tina Tipping Hsu's Motion to Correct Clerical Error in January 22, 2026 Order <i>See Line 6 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 7	25CV466037	<i>Michael Minh Vanderzyl</i> <i>v.</i> <i>Bill Wong, et al.</i>	Order on Plaintiff Vanderzyl's Motion to Set Aside Dismissal and Reinstate this Case to Active Status <i>See Line 7 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 8			
9:00 9			
9:00 10			
9:00 11			

9:00 <u>12</u>			
9:00 <u>13</u>			
9:00 <u>14</u>			
9:00 <u>15</u>			

Line 1

Case Name: *Chandra Bambah v. Google LLC d/b/a YouTube, et al.*

Case No.: 25CV475065

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Google LLC (“Google”) demurs to the First Amended Complaint (“FAC”) of Plaintiff Chandra Bambah (“Plaintiff”) on the grounds that the FAC fails to allege facts sufficient to state a cause of action under Code of Civil Procedure Section 430.10(e) and is barred by 47 U.S.C. § 230(c)(1) (“Section 230”). Notice of Demurrer (the “Demurrer”) at 6:4-9 (filed: June 22, 2026).

The Demurrer came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations & Background

Plaintiff Chandra Bambah is a retired documentary filmmaker and the father of a daughter he alleges was subjected to coercive practices at the Isha Foundation ashram in India. On October 5, 2024, Plaintiff created a YouTube channel titled “Sadhguru Inversed” and uploaded two videos totaling approximately six minutes. The first video was a recorded letter to the Chief Justice of India requesting additional time before an October 18, 2024, Supreme Court hearing concerning habeas corpus proceedings related to the Isha Foundation. The second video discussed the Isha Foundation’s alleged motives. (FAC ¶¶ 4, 9, 11, 18, 28)

At the time Plaintiff uploaded the videos, YouTube’s automated systems sent him a premiere confirmation email, which validated that no spam flag was triggered at upload. Between October 5 and October 10, 2024, the videos received fewer than ten total views. (FAC ¶¶ 11, 18, 19)

On October 10, 2024, YouTube permanently terminated Plaintiff’s channel, citing its “spam, deceptive practices and scams policy”. Plaintiff immediately appealed. Within two to three hours, YouTube denied the appeal, reconfirming that the channel violated the spam policy without identifying any specific content element as violating the policy. (FAC ¶¶ 11)

YouTube’s termination was driven by external pressure from the Isha Foundation, which has obtained court orders in India directing Google to remove content critical of the organization. Specifically, the Delhi High Court issued an ex parte injunction on March 12, 2025—approximately five months after Plaintiff’s channel was terminated—ordering

Google to remove a video titled “Sadhguru EXPOSED” and related content. Plaintiff contends that YouTube terminated his channel in anticipation of or response to similar pressure, not for legitimate content moderation reasons. (FAC ¶¶ 22-27)

Plaintiff initiated this action on September 15, 2025, and amended his complaint on May 5, 2026, alleging causes of action for (1) breach of contract, (2) negligent infliction of emotional distress, (3) violation of California Unfair Competition Law, (4) promissory estoppel, (5) intentional interference with prospective economic advantage, (6) civil conspiracy, and (7) declaratory relief. First Amended Complaint (“FAC”) at 23:4-38:26.

II. Legal Standard on Demurrer

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (*Redfearn v. Trader Joe’s Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine “whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (*Ibid.*) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts “construe the complaint ‘liberally ... with a view to substantial justice between the parties[.]’” (*Ibid.*) “A demurrer must dispose of an entire cause of action to be sustained.” (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Even if a demurrer is sustained, leave to amend the complaint is routinely granted

under California law. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

III. Analysis of the Demurrer

Defendant demurs to all seven causes of action alleged against it in the FAC on grounds that they are barred by 47 U.S.C. section 230, subdivision (c)(1) of the Communications Decency Act (“CDA”) and that Plaintiff fails to allege sufficient facts to constitute the causes of action. (Notice of Demurrer at 6:7-9)

Section 230 “immunizes providers of interactive computer services against liability arising from content created by third parties.” (*Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 928, quoting *Fair Housing Council of San Fernando Valley v. Roommates.com, LLC* (9th Cir. 2008) 521 F.3d 1157, 1162.) Under § 230(c)(1) of the CDA, a party is shielded from liability if the party is: “(1) a provider or user of an interactive computer service (2) whom a plaintiff seeks to treat, under a state law cause of action, as a publisher or speaker (3) of information provided by another information content provider.” (*Murphy v. Twitter, Inc.* (2021) 60 Cal. App. 5th 12, 24. quoting *Barnes v. Yahoo!, Inc.* (9th Cir. 2009) 570 F.3d 1096, 1100–1101.)

Here, all three elements required for Section 230(c)(1) immunity are satisfied.

First, Defendant is indisputably an interactive computer service provider. “Passively displaying content created entirely by third parties’ renders the operator only a service provider with respect to that content.” (*Wozniak v. YouTube, LLC*, (2024) 100 Cal. App. 5th 893, 909; internal citation and quotes omitted) Second, Plaintiff’s own allegations establish that he created and uploaded the videos at issue. Third, each of Plaintiff’s seven causes of action seeks to hold Defendant liable for its decision to remove Plaintiff’s videos—a quintessential publisher function. Put simply, Plaintiff seeks to adjudicate Defendant’s decision to remove his videos. However, this conduct i.e. Defendant’s refusal to allow certain content on its platform is typical publisher conduct protected by section 230 regardless of the reason for refusal.

California courts have consistently held that platform/service-provider decisions to publish, remove, alter content, or restrict access to third-party content constitute editorial functions protected by Section 230(c)(1). (See e.g., *Wozniak, supra*, 100 Cal. App. 5th at 908, 913 [“YouTube’s action amount to a publishing decision not to prevent or alter the videos”]; *Prager University v. Google, LLC* (2022) 85 Cal.App.5th 1022, 1032, [“lawsuits seeking to hold a service provider liable for its exercise of a publisher’s traditional editorial functions—such as deciding whether to publish, withdraw, postpone or alter content—are barred.”]; *Sikhs for Justice “SFJ”, Inc. v. Facebook, Inc.* (N.D.Cal. 2015) 144 F.Supp.3d 1088, 1095-1096; *Barrett v. Rosenthal* (2006) 40 Cal.4th 33, 43; *Fair Housing Council v. Roommates.com, LLC* (9th Cir. 2008) 521 F.3d 1157, 1170-1171 [“any activity

that can be boiled down to deciding whether to exclude material that third parties seek to post online is perforce immune under section 230”].)

Plaintiff alleges that Defendant breached express contractual obligations, breached the implied covenant of good faith and fair dealing, negligently inflicted emotional distress, engaged in unfair business practices, committed promissory estoppel, intentionally interfered with economic advantage, and conspired to suppress speech—all by permanently terminating his channel. In applying Section 230(c)(1) immunity, the Court does not consider the name or label of Plaintiff’s causes of action. Instead, “what matters is whether the cause of action inherently requires the court to treat the defendant as the ‘publisher or speaker’ of content provided by another.” (*Sikhs for Justice “SFJ,” supra*, 144 F. Supp. 3d at 1094.) Here, the Court finds that each of Plaintiff’s claims is predicated entirely on Defendant’s editorial decision to remove Plaintiff’s videos from its platform. This is precisely the type of publisher conduct that Section 230 immunizes.

Plaintiff attempts to avoid Section 230 immunity by characterizing Defendant’s conduct as its “own affirmative misconduct” rather than publisher activity. (Opposition at 8:12-15) This argument fails. The act that Defendant allegedly conducted is the removal of Plaintiff’s content, and removing content is something publishers do. Section 230 bars claims that seek to hold an interactive computer service liable as a publisher of third-party content, regardless of how artfully the plaintiff labels the claims.

Plaintiff’s reliance on *HomeAway.com, Inc. v. City of Santa Monica* (9th Cir. 2019) 918 F.3d 676, is misplaced. That case involved a municipal ordinance barring online platforms from completing booking transactions for unlicensed short-term rentals; platform liability turned on whether a transaction was completed, not on editorial decisions about what content to host. Here, by contrast, liability turns entirely on Defendant’s decision to remove Plaintiff’s videos - a core editorial function.

Plaintiff goes on to argue that section 230 is not a bar to his claims since Defendant acted in bad faith by removing his videos in response to external pressure from the Isha Foundation rather than for legitimate content moderation reasons. Plaintiff points to March 2025, and March 2026 court orders from India - directing Google to remove content critical of the organization – in support of his argument that Defendant removed his videos due to external pressure and not because they violated Defendant’s spam and deceptive practice policies. (Opposition at 8:20-10:2; FAC Exhibits D1, D2) But this argument not only conflates two distinct Section 230 provisions, but also fails for several reasons:

1. Section 230(c)(1) contains no good faith requirement. It asks only whether the claim requires treating the defendant as the publisher of information created by another. California courts have held that a platform’s motives for exercising editorial control are irrelevant to Section 230(c)(1) immunity. (See, e.g. *Sikhs for Justice “SFJ,” supra*, 144 F. Supp. 3d at 1095; *Riggs v. MySpace, Inc.* (9th Cir. 2011) 444 Fed. App’x. 986, 987.) Even assuming Defendant removed Plaintiff’s videos in response to pressure from the Isha Foundation (or in anticipation of such pressure), that does not strip Defendant’s Section 230(c)(1) immunity. The alleged

external influence may explain *why* Defendant exercised its editorial discretion in a particular way, but it does not transform the editorial decision itself into non-publisher conduct.

2. Section 230(c)(2), immunizes “any action voluntarily taken in good faith to restrict access to or availability of material that the provider or user considers to be . . . objectionable” (47 U.S.C. § 230(c)(2)(A).) The statute protects actions taken on the good faith belief that content is objectionable, a broad and subjective term that encompasses a wide range of platform judgments. Defendant identified a specific policy basis for the termination: its spam, deceptive practices, and scams policy. Whether or not Plaintiff’s videos actually violated that policy is beside the point for Section 230(c)(2)(A) purposes. The question is whether Defendant acted on a good faith belief that the content was objectionable, not whether a reviewing court would reach the same conclusion.
3. Pointing to the court orders from India paradoxically undermines Plaintiff’s bad faith theory. Defendant’s awareness of these orders and its potential legal exposure in India supports a finding of good faith under Section 230(c)(2)(A). Platforms routinely consider legal and regulatory risks when making content moderation decisions. Such considerations are part of the good faith exercise of editorial judgment that Section 230 was designed to protect. Plaintiff’s argument that the 2025 order did not justify Defendant’s action in October 2024, misses the point. The relevant inquiry under Section 230(c)(2)(A) is whether Defendant acted in good faith when it made the termination decision, not whether the termination was objectively compelled by law. If Defendant was aware in October 2024 that the Isha Foundation was pursuing (or threatening to pursue) legal action in India concerning similar content, a decision to remove Plaintiff’s videos to mitigate legal risk would be a good faith content moderation judgment, not bad faith suppression.

Plaintiff invokes *Enigma Software Grp. USA, LLC v. Malwarebytes, Inc.* (9th Cir. 2019) 946 F.3d 1040, for the proposition that bad faith allegations defeat Section 230 immunity at the pleading stage. (FAC ¶ 10, Opposition at 8:20-23) However, *Enigma* involved narrow circumstances—allegations that one commercial competitor configured its anti-malware product to flag a rival’s software as a security threat for anticompetitive reasons. The Ninth Circuit’s holding was expressly limited to that context: “blocking and filtering decisions . . . driven by anticompetitive animus are not entitled to immunity under section 230(c)(2)”. (*Id.* at 1050.) The court did not address Section 230(c)(1) at all and emphasized the narrow scope of its ruling.

Enigma does not apply here. Defendant is not Plaintiff’s competitor, and the theory is not that Plaintiff’s videos were blocked for anticompetitive purposes. Plaintiff’s attempt to extract a broad “bad faith” exception to Section 230(c)(1) from *Enigma*’s narrow holding finds no support in the decision itself or in subsequent California authority.

Moreover, because the Court has now found that all seven causes of action of the FAC are categorically barred by Section 230(c)(1), the Court perceives no reasonable

possibility whatsoever that Plaintiff could cure this fatal defect through amendment. Therefore, after carefully considering all the papers and the record and arguments of counsel and the standard for granting amendment under California law, and in the broad exercise of its discretion, the Court **SUSTAINS** Google's Demurrer to the First Amended Complaint **WITHOUT LEAVE TO AMEND**.

IV. Conclusion & Order

Accordingly, the Court **SUSTAINS** the Demurrer of Defendant Google LLC to the First Amended Complaint of Plaintiff Chandra Bambah **WITHOUT LEAVE TO AMEND** because all causes of action in the First Amended Complaint are barred by 47 U.S.C. Section 230(c)(1).

SO ORDERED.

Date: September 4, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 2

Case Name: *Lee Drone v. Peter D. Bear, et al.*

Case No.: 25CV480264

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Specially-Appearing Defendant Ian Goodman (“Defendant”) moves under code of Civil Procedure Section 418.10 to quash service of summons on the ground that this Court lacks personal jurisdiction over Defendant. Notice of Motion (the “Motion”) at 2:4-7 (filed: Jan. 27, 2026).

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

On November 1, 2021, Plaintiff and Ian Goodman , as co-owners, purchased the real property located at 1430 Ellen Avenue, Madison, Wisconsin (“Wisconsin Property”). Dane County Title Company acted as the settlement agent for the transaction (Complaint ¶¶ 1, 2)

Some dispute arose between Plaintiff and Ian Goodman. As a result, Ian Goodman, through his attorney Peter Bear, sent various email communications to Plaintiff regarding their co-ownership agreement, offer to purchase Plaintiff’s share, Goodman’s petition for harassment injunction, and service of the restraining order. Peter Bear and Plaintiff exchanged email communications pertaining to the legal proceedings in Wisconsin, discovery, settlement terms and proposals. Some of the email communications contained production of Plaintiff’s loan application without redacting Plaintiff’s private information, and Goodman’s petition, which contained false statements. (Complaint ¶¶ 2-10, 26-107)

As a result of Defendants’ wrongful acts and communications, Plaintiff was unlawfully excluded from use and disposition of the Wisconsin Property; has incurred litigation costs, travel costs, loss of work time; has suffered reputational harm and emotional distress. (Complaint ¶¶ 197-198)

Plaintiff initiated this action on November 21, 2025, alleging 84 causes of action:

Count 1 - Negligent Mishandling of Property-Related Financial Records; Breach of custodial duty as settlement agent

Count 2- Negligent Misrepresentation; Failure to preserve accuracy in closing documentation

Count 3 - Intentional Interference with Property Rights; Attorney-assisted coercive real-estate proposal used to pressure surrender of co ownership interest

Count 4- Fraudulent Misrepresentation; Misleading use of attorney signature block to induce reliance

Count 5 - Economic Duress; Embedding legal threats. deadlines, and financial pressure to coerce property transfer

Count 6- Unlawful Restraint on Speech and Conduct; Embedding lifetime no-contact and behavioral restrictions in attorney-shaped proposal

Count 7 - Constructive Fraud; Exploiting implied attorney expertise to conceal material risks and liabilities

Count 8- Coerced Waiver of Legal Rights; Embedding unlawful waivers of communication and legal rights inside coercive proposal

Count 9 - Fraudulent Misrepresentation; False assurances regarding financial terms. legal effect, and liability consequences

Count 10 - Intentional Interference with Contractual Relations; Attorney-driven interference with existing co-ownership and contractual obligations

Count 11- Abuse of Process under California Common Law; Retaliatory use of judicial process after refusal to surrender property

Count 12 - Negligent Misrepresentation; Use of false Wisconsin address to obtain defective service and jurisdiction

Count 13 – Defamation; Fabricated claim of access to weapons to influence judicial process

Count 14 - Concealment of Material Facts; Failure to identify the subject property in official service record;

Count 15 - Intentional Interference with Property Rights; Coercive transmission of renewed proposal and affidavit through attorney intermediary

Count 16 - Fraudulent Misrepresentation of Judicial Status; Misuse of void temporary restraining order to coerce property transfer

Count 17 - Economic Duress; Use of pending and prospective judicial filings as leverage for property transfer

Count 18 - Intentional Interference with Property Rights; Re-issuance of purchase offer with behavioral restrictions and deadline pressure

Count 19 - Misrepresentation of Service by Publication and Default Status; False representation of completed service used to induce agreement

Count 20 - Economic Duress; Quid-pro-quo settlement linked to anticipated court success

Count 21- Intentional Interference with Property Rights; Use of electronic communication to coerce property transfer outside judicial process

Count 22 – Defamation per se; Use of professional authority to impair liberty and property interests

Count 23 - Abuse of Process; Coercive use of litigation and publicity threats to obtain property

Count 24 - Economic Duress; Economic coercion through quid-pro-quo agreement to withhold legal action ad

Count 25 - Fraudulent Misrepresentation; Use of asserted judicial authority to pressure settlement

Count 26 - Abuse of Process; Framing separate legal and private issues to extend

leverage

Count 27 - Constructive Fraud; Failure to include lender release or mortgage protection

Count 28 - Civil Conspiracy to Commit Fraud; Joint action to divest property interest without due process

Count 29 - Abuse of Process; Use of judicial order as instrument of private coercion

Count 30 - Fraudulent Concealment; Presentation of facially neutral documents masking threats

Count 31 - Economic Duress; Attorney's direct issuance of coercive proposal through misuse of his professional role

Count 32 - Negligent Entrustment of Confidential Financial Information; Improper upstream disclosure of sensitive lender-file materials to an unauthorized attorney

Count 33 - Negligent Mishandling of Records; Failure to safeguard co-owned financial documents prior to transmission to third parties

Count 34 - Invasion of Privacy (Informational Privacy); Disclosure of Plaintiff's lender-file document by co-owner outside lawful process

Count 35 - Causation of Public Disclosure of Private Facts; Upstream financial-document disclosure resulting in downstream public exposure

Count 36 - Abuse of Process; Failure to provide corroborating materials referenced in sworn affidavit

Count 37 - Abuse of Process; Withholding chain-of-custody information for recordings referenced in sworn filings

Count 38 - Abuse of Process; Procedural deprivation through unserved and incomplete filing

Count 39 - Slander of Title; Misrepresentation of property interest to diminish recorded title

Count 40 - Defamation per se; Insertion of irrelevant personal attacks to bias judicial proceeding

Count 41 - Abuse of Process; Application of waiver theory to nullify jurisdictional protections

Count 42 - Abuse of Process; Evasion of lawful service requirements through unauthorized delegation

Count 43 - Abuse of Process; Failure to correct co-counsel's unlawful service conditions

Count 44 - Abuse of Process; Evasion of lawful service requirements by providing invalid address

Count 45 - Abuse of Process; Unlawful conditioning of procedural rights on non-statutory terms

Count 46 - Abuse of Process; Expansion of unauthorized service demands across multiple proceedings

Count 47 - Civil Conspiracy to Commit Abuse of Process; Coordinated evasion and obstruction of lawful service between co-counsel

Count 48 - Abuse of Process; Failure to ensure lawful service depriving notice and participation

Count 49 - Abuse of Process; Neglect of mandatory service obligations resulting in denial of notice

Count 50 - Abuse of Process; Improper electronic service of initiating pleadings

without authorization

Count 51 - Abuse of Process; Tacit participation in unauthorized electronic service of pleadings

Count 52 - Abuse of Process; Improper timing and electronic delivery of hearing evidence without adequate notice

Count 53 - Public Disclosure of Private Facts; Use and circulation of outdated and protected correspondence to influence judicial proceedings

Count 54 - Civil Conspiracy to Commit Abuse of Process; Joint preparation and submission of unauthorized hearing exhibits

Count 55 - Intentional Misrepresentation Regarding Property Ownership; Initial misrepresentation establishing ongoing ownership-pressure scheme

Count 56 - Unfair Business Practices (Pattern of Fraudulent Conduct); Linking renewed proposal, affidavit, and threats to earlier fraudulent acts

Count 57 - Unfair Business Practices (Use of judicial Process to Coerce Property Transfer); Integration of proposal, petition, and service filings into continuing pattern of wrongful acts

Count 58 - Civil Conspiracy to Commit Fraud; Affidavit used as key act supporting ongoing fraudulent scheme

Count 59 - Unfair Business Practices (Pattern of Fraudulent and Coercive Conduct); Incorporating December 19 email and offer as additional acts in ongoing scheme

Count 60 - Abuse of Process; Use of belief-based affidavit and evidence refusal as continuing acts of obstruction

Count 61 - Unfair Business Practices (Evidence Obstruction and Coercive Settlement); Use of evidence refusal, belief-based affidavit, and coercive settlement as continuing acts

Count 62 - Public Disclosure of Private Facts; Integration of January 8, 2024, leak into continuing pattern of wrongful disclosure

Count 63 - Invasion of Privacy (Informational Privacy); Integration of Ian Goodman's disclosure into ongoing pattern of privacy invasion and coercive conduct

Count 64 - Civil Conspiracy to Commit Abuse of Process and Fraud; Obstruction, threats, and false-record email cluster as related acts in ongoing scheme

Count 65 - Abuse of Process; Defective filing, false statements, and jurisdictional manipulation as acts of misuse of process

Count 66 - Abuse of Process; Use of service obstruction as continuing acts of misuse of process

Count 67 - Economic Duress and Coercive Use of Litigation Threats; Use of threatened litigation and fear to obtain property interests

Count 68 - Abuse of Process; Advocate-as-witness misconduct and fabrication of evidence

Count 69 - Abuse of Process; Use of interstate email to circumvent lawful service and advance injunction proceedings

Count 70 - Invasion of Privacy (Informational Privacy); Unauthorized acquisition and initial disclosure of personally identifiable and financial data

Count 71 - Invasion of Privacy (Informational Privacy); Unauthorized use of confidential financial records outside any lawful process

Count 72 - Abuse of Process; Withholding evidence and altering records to impair

defense

Count 73 - Abuse of Process; Interstate email scheme to misrepresent service and gain procedural advantage

Count 74 - Economic Duress through Coercive Settlement Terms; Wrongful use of fear and litigation threats to obtain property rights

Count 75 - Economic Duress through Coordinated Litigation and Reputation Threats; Coercive litigation threats and property-surrender demands in coordinated package

Count 76 - Economic Duress via Threatened Litigation and Reputational Harm; Fear of litigation and reputation used as economic coercion

Count 77- Economic Duress through Injunction-Conditioned Property Demands; Pattern of injunction-conditioned property demands as ongoing course of economic duress

Count 78 - Invasion of Privacy (Informational Privacy); Interstate electronic release of confidential loan-application data

Count 79 - Intentional Misrepresentation (Fraudulent Inducement); Use of interstate email for coercive property offers and fraudulent inducement

Count 80 - Abuse of Process; Suppression of recordings and use of evidence requests for settlement pressure

Count 81 - Abuse of Process and Coercive Interference with Petition Rights; Conditioning property relief on silence and withdrawal of participation

Count 82 - Abuse of Process (False Affidavit Use); Submission of affidavit containing belief-based, materially false statements

Count 83 - Negligent Handling of Confidential Financial Information; Negligent custodial handling enabling unauthorized disclosure of loan records

Count 84 - Civil Conspiracy to Commit Fraud and Abuse of Process; Coordinated scheme using misrepresentation and misuse of process to impair property rights.

Complaint pp. 38-83 (filed: Nov. 21, 2025).

II. Legal Standard on Motion to Quash

A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow” may move “to quash service of summons on the ground of lack of jurisdiction of the court over him or her” that results from lack of proper service. (Code. Civ. Proc. § 418.10(a)(1). A defendant has 30 days after the service of the summons to file a responsive pleading. (Code. Civ. Proc. § 412.20(a)(3).) “Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant.” (*AO Alfa-Bank v. Yakovlev* (2018) 21Cal.App.5th 189, 202 [internal quotations marks and citation omitted].) To establish personal jurisdiction, compliance with statutory procedures for service of process is essential. (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371.) Defendant's knowledge of the action does not dispense with statutory requirements for service of summons. (*Kappel v. Bartlett* (1988) 200 Cal.App.3d 1457, 1466.)

When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of

jurisdiction. (See, *Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd.* (2019) 31 Cal.App.5th 543, 553.) “The plaintiff must do more than merely allege jurisdictional facts. It must present evidence sufficient to justify a finding that California may properly exercise jurisdiction over the defendant.” (*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 110.) “If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating that the exercise of jurisdiction would be unreasonable.” (*Jayone Foods, supra*, 31 Cal.App.5th at p. 553.)

III. Threshold procedural considerations

Plaintiff, in his opposition, objects to the timeliness of the motion and the electronic service of the motion, to which he had not consented. (Opposition at 6:10-19)

A motion to quash must be made by the last day for a party to file a responsive pleading, or within any further time the court allows for good cause. (Code Civ. Proc., § 418.10, subd. (a).) The Court notes that Defendant was personally served on December 18, 2025. (Proof of Service filed January 8, 2026) As such, Defendant was required to file his motion to quash no later than January 19, 2026. Therefore, Defendant’s motion is untimely. Nonetheless, “[a] trial court has broad discretion to accept or reject late-filed papers.” (*Jack v. Ring LLC* (2023) 91 Cal.App.5th 1186, 1210, internal citation omitted.)

Defendant contends his motion was originally filed electronically on January 20, 2026, but was denied for failure to reserve a hearing date. The motion and proof of service was then revised and resubmitted on January 27, 2026. Defendant submits email communications from Onelegal, a litigation support platform that handles court filings, showing the motion to quash was filed on January 20 and was rejected by the Court’s clerk. (Defendant’s Exhibits A-C.)

Plaintiff filed his opposition to the motion on June 3, 2026, contesting the merits of Defendant’s motion, despite his claim of inadequate service and notice. It is well settled that a party’s opposition to a motion on its merits is a waiver of any defects or irregularities in the notice of the motion. This rule applies even when no notice was given at all. (*Carlton v. Quint*, (2000) 77 Cal. App. 4th 690, 697.)

Given the totality of the circumstances in this matter, the Court exercises its discretion to consider Defendant’s motion to quash and consider any defect in the service of the motion as waived. Accordingly, the Court now proceeds to resolve this Motion on its merits.

IV. Analysis of the Motion to Quash

To comport with federal and state due process, California may only exercise jurisdiction when a defendant has sufficient minimum contact with the state to satisfy traditional notions of fair play and substantial justice. California recognizes two ways in which the constitutional “minimum contacts” requirement may be satisfied. General jurisdiction exists where the nonresident defendant's contacts with the forum state are so

“extensive or wide-ranging” as to justify jurisdiction even for purposes unrelated to the defendant's contacts. (*Safe-Lab, Inc. v. Weinberger* (1987) 193 Cal.App.3d 1050, 1053; *Boaz v. Boyle & Co.* (1995) 40 Cal.App.4th 700, 717)

Alternatively, a court may exercise specific jurisdiction over a nonresident defendant only if: (1) the nonresident defendant has purposefully availed himself of forum benefits; (2) the controversy relates to, or arises out of, the nonresident defendant's contacts with the forum; and (3) the exercise of jurisdiction comports with fair play and substantial justice. The specific jurisdiction analysis focuses on the relationship between the defendant, the forum, and the litigation. (See, *Zehia v. Superior Court* (2020) 45 Cal.App.5th 543, 551–552.)

“The purposeful availment inquiry ... focuses on the defendant's intentionality. This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court's jurisdiction based on his contacts with the forum. Thus, the purposeful availment requirement ensures that a defendant will not be haled into a jurisdiction solely as a result of random, fortuitous, or attenuated contacts, or of the unilateral activity of another party or a third person. When a [defendant] purposefully avails itself of the privilege of conducting activities within the forum State, it has clear notice that it is subject to suit there, and can act to alleviate the risk of burdensome litigation by procuring insurance, passing the expected costs on to customers, or, if the risks are too great, severing its connection with the State.” (*Pavlovich v. Superior Court*, (2002) 29 Cal. 4th 262, 269; internal citations and quotes omitted)

Courts apply the “effects test” to determine purposeful availment not only in defamation context but also in other intentional torts, including business torts. (See, *Id.* at 272-273, fn. 3; *IMO Industries, Inc. v. Kiekert AG* (3d Cir. 1998) 155 F.3d 254, 259-260, 261; *Far West Capital, Inc. v. Towne* (10th Cir. 1995) 46 F.3d 1071, 1077.) Under this test, intentional conduct occurring elsewhere may give rise to jurisdiction in California where it is calculated to cause injury in California. The defendant must expressly aim or target his conduct toward California, with the knowledge that his intentional conduct would cause harm in the forum. (See, *Pavlovich, supra*, 29 Cal. 4th at pp. 271–273; *Calder v. Jones* 465 U.S. 783, 788-790.) California courts emphasize that the analysis must focus on the defendant's contacts with the forum state itself, and not merely the defendant's contacts with a person who resides there. The proper inquiry is whether the defendants’ conduct connects them to the forum in a meaningful way. (See, *Burdick v. Superior Court*, (2015) 233 Cal.App.4th 8, 13.)

Specially-appearing Defendant contends the Court lacks personal jurisdiction over him because (1) he has not purposefully availed himself of California, (2) Plaintiff's claims do not arise out of California contacts, and (3) exercising jurisdiction would be unreasonable and inconsistent with fair play and substantial justice. (Motion at 6:6-24, 7:22-8:3) More specifically, Defendant argues that the subject communications “received in California were incidental to Wisconsin-centered litigation and a Wisconsin property/title dispute and were not an attempt to exploit, target, or conduct activities within California. Plaintiff's unilateral decision to be in California when receiving litigation-related communications does not transform Wisconsin centered conduct into

California-directed activity.” (Motion at 6:25-7:3) Defendant’s submitted declaration supports his contention.

In opposition, Plaintiff argues that specific jurisdiction exists because Defendant not only traveled to California once prior to the purchase of the Subject property, but also purposefully directed and transmitted his communications/materials that were associated with the Wisconsin dispute to him in California. Those communications and materials included emails, affidavits, settlement-related communications, injunction-related communications, demands, and disclosures. (Opposition at 2:22-4:10)

Plaintiff submits his Declaration in support of his Opposition. Plaintiff declares:

- In 2024, he filed a Wisconsin partition action concerning the Wisconsin Property, Case No. 2024CV000216, which remains pending. (Decl. ¶ 4)
 - In 2025, he filed Wisconsin actions 2025CV001149 and 2025CV001521, which asserted certain non-property claims arising from related underlying events. (Decl. ¶ 6)
 - He, thereafter, elected to pursue certain related non-property claims in California, where he has resided and worked since 2019. (Decl. ¶ 8)
 - Ian Goodman personally visited Plaintiff in California in 2021, before the purchase of the Wisconsin Property (Decl. ¶ 11)
 - Prior to purchasing the Wisconsin Property, he and Ian Goodman exchanged emails pertaining to their co-ownership of the Property, loan application, appraisal, financing, etc. (Decl. ¶¶ 10-13)
 - During relevant times, he received communications and materials concerning the disputes and matters referenced in the complaint. The communications included emails, litigation-related communications, proposals, settlement-related communications, affidavits, demands, and related materials concerning the disputes. (Decl. ¶¶ 15-17)
 - He received email communications from Defendants concerning the disputes and matters referenced in the complaint. These emails included litigation-related communications, proposals, settlement-related communications, affidavits, demands, disclosures of confidential financial information, and related materials concerning the underlying disputes. (Decl. ¶¶ 17, 20)
- Declaration of Lee Drone in Support of Plaintiff’s Opposition to Defendants’

Motion to Quash (filed: June 3, 2026).

Here, the Complaint alleges various and sundry torts arising from the content of email communications between the parties. The communications pertained to Ian

Goodman's application for a restraining order against Plaintiff, service of the restraining order via publication, title and possessory dispute over the Wisconsin Property, settlement proposals and terms, related evidence supporting the restraining order, related evidence supporting the title dispute, Wisconsin court docket/hearing/filings. Communications predominantly occurred between Plaintiff and Peter Bear, who represented Ian Goodman. Plaintiff himself sent emails to Mr. Bear addressing the legal proceedings and requesting information, documents, and evidence. (Complaint ¶¶ 2-10, 26-107) Electronic communications, including emails and telephone calls, may establish the requisite minimum contacts if a defendant "reaches back" into California to create a "continuing obligation" or to conduct business with a resident. However, sending communications about legal proceedings occurring in a foreign state generally lacks the necessary California focus. Simply transmitting communications to a California resident with knowledge of their residency is insufficient to satisfy the express aiming requirement if the subject matter of the communication is anchored in another forum. If the emails merely transmit information regarding foreign legal proceedings, they constitute contact with the Plaintiff rather than contact purposefully directed at the forum state itself, making the contact too random, fortuitous, or attenuated to justify personal jurisdiction.

Furthermore, Defendant's single short travel to California, a year prior to the purchase of the Wisconsin Property, does not change the fortuitous and attenuated nature of his contact with California especially when the trip was neither connected to any business activity in California nor led to any tort claim. (Goodman Decl. ¶¶ 6-8) It is well settled that jurisdiction is proper even during a single, brief visit when a tort is committed. The classic example is a visitor who negligently causes a car accident. (See, *Doe v. Damron*, (2021) 70 Cal. App. 5th 684, 692, citing *Internat. Shoe Co. v. Washington* (1945) 326 U.S. 310, 316.)

Neither Plaintiff's declaration nor his verified complaint shows that Defendant's single social travel to California led to a tort claim within the State, *or* that his out-of-state communications were expressly aimed at California rather than at him personally. On this record, Plaintiff fails to meet his burden of demonstrating facts that justify the exercise of personal jurisdiction over Defendant here.

V. Conclusion & Order

For all the reasons explained above, the Motion of Specially-Appearing Defendant Ian Goodman under code of Civil Procedure Section 418.10 to quash service of summons for lack of personal jurisdiction is **GRANTED**.

SO ORDERED.

Date: September 4, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 3

Case Name: *Fanbo Zhang v. Wen Luo, et al.*

Case No.: 25CV483126

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Wen Luo (“Defendant”) moves under Code of Civil Procedure Section 425.16 moves to strike the Complaint of Plaintiff Fanbo Zhang (“Plaintiff”) on the grounds that:

1. Plaintiff’s Complaint arises from Defendant’s conduct in furtherance of her right of free speech under the United States and California Constitution, which conduct is protected under anti-SLAPP statute codified in Code of Civil Procedure § 425.16; and
2. Plaintiff cannot meet his burden of establishing, through competent and admissible evidence, a probability that he will prevail on each cause of action within his Complaint and all subsequent causes of action derived therefrom as required under Code of Civil Procedure § 425.16(b)(1).

Notice of Motion (the “Motion”) at 1:24-2:7 (filed: June 16, 2026).

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

On or around June 30, 2023, Plaintiff and Defendant entered into a settlement agreement (“the Agreement”) to settle and resolve any disputes arising from Plaintiff and Defendant’s relationship. (Complaint, ¶ 6.) Plaintiff agreed to provide Defendant a 2018 White Audi A4, a David Yurman ring, and \$3,000 cash. (*Id.* at ¶ 7.) Defendant “fully and forever released and discharged Plaintiff from any and all claims, demands, actions, causes of action, liabilities, damages, costs, expenses, or judgments of any kind or character in law, equity or otherwise, known and unknown, suspected and unsuspected, disclosed and undisclosed, directly or indirectly relating to” Plaintiff’s relationship with Defendant at any time prior to and including the date of execution. (*Id.* at ¶ 8.)

The parties “expressly agreed that the release extends to all claims occurring before the execution of the Agreement and that both parties waived all rights granted under section 1542 of the California Civil Code.” (*Id.* at ¶ 9.) The Agreement also included a confidentiality clause binding both parties from disclosing any information relating to the

relationship between Plaintiff and Defendant or relating to the Agreement. (*Id.* at ¶ 10.) The Complaint alleges that Defendant “materially violated the Agreement by (1) filing a Domestic Violence Restraining Order (“DVRO”) request, re-asserting claims arising before the Agreement and from the parties’ relationship, and (2) publicly disclosing personal and defamatory information about Plaintiff and his family online, as well as disclosing the parties’ relationship to Plaintiff’s mother, all in direct violation of the Agreement’s confidentiality provisions.” (*Id.* at ¶ 12.)

Plaintiff’s Complaint asserts causes of action for (1) breach of contract and (2) money had and received. Currently before the Court is the anti-SLAPP Motion, untimely filed by Defendant. Plaintiff has opposed the anti-SLAPP motion and Defendant has filed a reply and evidentiary objection to Plaintiff’s declaration in opposition.

For the reasons the Court will now explain below:

- Defendant’s evidentiary objection number ten is **SUSTAINED**;
- Defendant’s evidentiary objections numbers one through nine and 11 through twenty are **OVERRULED**;
- Defendant’s anti-SLAPP motion is **DENIED**; and
- Defendant’s request for fees is also **DENIED**.

Analysis of the Anti-SLAPP Motion

I. Procedural Issues

The parties agree that Defendant’s anti-SLAPP motion was filed 50 days after expiration of the statutory period to file. Defendant requests that the Court uses its discretion to nevertheless review the anti-SLAPP motion. Defendant states that the “incompetence” and “legal malpractice” of prior counsel resulted in a delay and includes a declaration to that effect. (Motion, p. 2.) Plaintiff opposes Defendant’s request and argues that Defendant did not act with reasonable diligence and that the delay was inadequately explained and substantial. However, Plaintiff does not present facts to support a finding that review of Defendant’s anti-SLAPP motion will “affect the substantial rights” of Plaintiff. Plaintiff argues only that objecting to the motion will result in prejudice due to the expense of opposing it and discovery delay. No trial date has been set in this matter, so prejudice resulting from delay to discovery is minimal. As such, the Court will review Defendant’s anti-SLAPP motion. (See Code Civ. Proc., § 425.16, subd. (f) [“The special motion may be filed within 60 days of the service of the complaint or, in the Court’s discretion, at any later time upon terms it deems proper.”].)

In addition, Defendant’s overly long Motion is in violation of California Rules of Court, rule 3.1113(d). (Cal. Rules of Court, rule 3.1113(d) [memorandum should be 15 pages or less except for summary judgment motions].) Defendant did not request leave of

Court for the overlong Motion.

Moreover, Defendant's reply presents several new arguments and facts. The Court has discretion to consider such additional issues and evidence so long as the party opposing the motion has notice and an opportunity to respond, which Defendant did *not* afford Plaintiff here. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) The Court will only consider Defendant's reply to the extent it addresses points raised in opposition and originally advanced in the anti-SLAPP motion.

The Court admonishes Defendant to ensure compliance with the Code of Civil Procedure, Rules of Court, and long-established rules of motion practice.

II. Evidentiary Objections

On reply, Defendant advances 20 separate evidentiary objections ("Evidentiary Objections") to two declarations submitted by Plaintiff in support of Plaintiff's opposition to Defendant's anti-SLAPP motion. In addition to raising boilerplate objections for "lack of personal knowledge, a missing foundation, a failure to authenticate a writing, or testimony that is speculation or legal argument," Defendant argues that "Plaintiff's contract claim depends on proving that [Defendant] made the communications at issue. Neither declarant is competent to say so." (Evidentiary Objections, p. 2.) In response, Plaintiff filed a request for leave to file an amended declaration curing one declaration of its omission of a date and place of execution.

The evidence in establishing the second prong of the anti-SLAPP analysis must be admissible. (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 940.) "In sum, at the second stage of an anti-SLAPP hearing, the Court may consider affidavits, declarations, and their equivalents if it is reasonably possible the proffered evidence set out in those statements will be admissible at trial. Conversely, if the evidence relied upon *cannot* be admitted at trial, because it is categorically barred or undisputed factual circumstances show inadmissibility, the Court may not consider it in the face of an objection. If an evidentiary objection is made, the plaintiff may attempt to cure the asserted defect or demonstrate the defect is curable." (*Id.* at p. 949.)

Here, among Defendant's many evidentiary objections is an objection to the declaration of Plaintiff's mother because the declaration does not include a date or place of execution. The Court **SUSTAINS** the threshold evidentiary objection to the declaration of Yajuan Sun (number 10 in Defendant's evidentiary objection motion).¹

As for Defendant's other evidentiary objections, Defendant has not demonstrated that the declarations are categorically barred or that undisputed factual circumstances show inadmissibility. Defendant largely presents boilerplate objects based on relevance,

¹ Regarding Plaintiff's related Request to file an amended Declaration (in support of her Opposition) with a date and place of execution, the Court DENIES that request by Plaintiff as MOOT because that Court DENIES Defendant's Anti-SLAPP Motion here.

hearsay, lack of foundation, or the like. It is reasonably possible that the proffered evidence in the declarations will be admissible at trial. The Court **OVERRULES** evidentiary objections numbered one through nine and 11 through 20. (See *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 532-533 [“[I]t has become common practice for litigants to flood the trial Courts with inconsequential written evidentiary objections, without focusing on those that are critical...all too often litigants file blunderbuss objections to virtually every item of evidence submitted. [Citations.] [L]itigants should focus on the objections that really count. Otherwise, they may face informal reprimands or formal sanctions for engaging in abusive practices.”].)

III. Legal Standard on Anti-SLAPP Motion

Code of Civil Procedure section 425.16 provides a summary procedure by which defendants may dispose of “strategic lawsuits against public participation” or “SLAPP” lawsuits, i.e. lawsuits brought “primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (Code Civ. Proc., § 425.16, subd. (a).) The moving party bears the initial burden to make a threshold showing that the challenged cause of action arises from acts that were taken in furtherance of the defendant’s right of petition or free speech under the U.S. Constitution or the California Constitution in connection with a public issue. (*Id.* at subd. (b); see also *Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal. 4th 53, 67.) If such a showing is made, the anti-SLAPP motion will be granted only where the opposing party fails to demonstrate a probability of prevailing on the claim. (Code Civ. Proc., § 425.16, subd. (b)(1).)

“Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a ‘summary-judgment-like procedure.’ [Citation.] The Court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law. [Citation.] ‘[C]laims with the requisite minimal merit may proceed.’ [Citation.]” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384-385, footnote omitted (*Baral*)).

Explained differently, “[a]t the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the Court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The Court, without resolving evidentiary conflicts, must determine whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a

favorable judgment. If not, the claim is stricken. Allegations of protected activity supporting the stricken claim are eliminated from the complaint, unless they also support a distinct claim on which the plaintiff has shown a probability of prevailing.” (*Baral*, *supra*, 1 Cal.5th at p. 396.)

IV. Analysis

A. First Step of the Analysis of the Anti-SLAPP Motion

At the first step, the moving party must show that the challenged claim arises from an “act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue” includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).) “Filing a lawsuit is an act in furtherance of the constitutional right of petition, regardless of whether it has merit. [Citations.] [Citation.]” (*Trapp v. Naiman* (2013) 218 Cal.App.4th 113, 120.)

“[A] claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060 (*Park*).) “A claim arises from protected activity when that activity underlies or forms the basis for the claim. [Citations.] Critically, ‘the defendant’s act underlying the plaintiff’s cause of action must itself have been an act in furtherance of the right of petition or free speech.’ [Citations.] ‘[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute.’ [Citations.] Instead, the focus is on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.’ [Citation.]” (*Id.* at pp. 1062-1063.) At the first step of the analysis, “the focus is on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.’ [Citation.] (*Id.* at p. 1063.)

“At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the Court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated.” (*Baral*, *supra*, 1 Cal.5th at p. 396.)

Here, the Complaint alleges that Defendant “materially violated the Agreement by (1) filing a Domestic Violence Restraining Order (“DVRO”) request, re-asserting claims arising before the Agreement and from the parties’ relationship, and (2) publicly disclosing personal and defamatory information about Plaintiff and his family online, as well as disclosing the parties’ relationship to Plaintiff’s mother, all in direct violation of the Agreement’s confidentiality provisions.” (Complaint, ¶ 12.) Defendant argues that her conduct was protected by her right to petition and if not by her right to petition, her right to free speech in connection with a public issue.

“The constitutional right of petition encompasses ‘the basic act of filing litigation.’ [Citation.].” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 90.) “[S]tatements, writings and pleadings in connection with civil litigation are covered by the anti-SLAPP statute, and that statute does not require any showing that the litigated matter concerns a matter of public interest. [Citations.]” (*Rohde v. Wolf* (2007) 154 Cal.App.4th 28, 35.) Plaintiff’s complaint asserts causes of action arising from Defendant having filed a DVRO request. The DVRO request was “petitioning activity” and thus protected activity, and no further showing that the litigated matter concerns a matter of public interest is required.

Defendant also argues that her public disclosures online and to Plaintiff’s mother were protected because they were made in connection with litigation, and if not in made connection with litigation, they amount to free speech in support of a public issue.

The Complaint alleges that Defendant “publicly disclos[ed] personal and defamatory information about Plaintiff and his family online, as well as disclosing the parties’ relationship to Plaintiff’s mother[.]” (Complaint, ¶ 12.) The Complaint further alleges that Defendant “engaged in multiple instances of harassment against Plaintiff’s mother, Ms. Sun,” and “made repeated phone calls and sent text messages to Ms. Sun from U.S. and international numbers, accusing Plaintiff of criminal acts and questioning her regarding Plaintiff’s prior relationship with Defendant Wen Luo.” (Complaint, ¶¶ 16, 17.)

“It is insufficient to assert that the acts alleged were in connection with an official proceeding. Instead, there must be a connection with an issue under review in that proceeding. A statement is in connection with an issue under consideration by a Court in a judicial proceeding within the meaning of clause (2) of ... section 425.16, subdivision (e) if it *relates to a substantive issue* in the proceeding and is directed to a person having some **interest** in the proceeding.” (*Michael K. v. Cho* (2025) 113 Cal.App.5th 1, 10-11, internal citations and quotation marks omitted, emphasis in original.) To the extent Defendant argues that the alleged online posts and communications with Plaintiff’s mother was protected speech in connection with her DVRO request, Defendant did not meet the burden to show that the alleged speech related to a substantive issue in her proceeding against Plaintiff or that Plaintiff’s mother had an interest in the DVRO request proceeding.

As to Defendant’s conduct being protected speech in support of the public issue of domestic violence, Code of Civil Procedure section 425.16 defines protected activity to include “any written or oral statement or writing made in a place open to the public or a

public forum in connection with an issue of public interest, or any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).) “First, we ask what ‘public issue or ... issue of public interest’ the speech in question implicates—a question we answer by looking to the content of the speech. (§ 425.16, subd. (e)(4).) Second, we ask what functional relationship exists between the speech and the public conversation about some matter of public interest.” (*FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133, 149-150.)

The Complaint alleges that Defendant “made repeated phone calls and sent text messages to Ms. Sun from U.S. and international numbers, accusing Plaintiff of criminal acts and questioning her regarding Plaintiff’s prior relationship with Defendant Wen Luo,” and made “statements on social media platforms identifying Plaintiff by name and alleging he ‘forced someone to have an abortion.’” (Complaint, ¶¶ 16-18.) Domestic violence is an issue within the public interest. However, Defendant does not establish a functional relationship between the speech alleged and public conversation about domestic violence. Defendant does reference “the broader protection of the other [sic] whom Defendant believed should be protected against similar actions by Plaintiff.” (Motion, p. 21.)

However, Defendant does not explain how the conduct underlying Plaintiff’s complaint was in support of protecting others from domestic violence, or how Defendant’s alleged online posts or communications with Plaintiff’s mother was “free speech in support of a public issue” beyond conclusory statements that Defendant’s conduct was in the public interest because it concerned domestic violence, and because Plaintiff filed a competing domestic violence restraining order. Defendant does not present evidence that Plaintiff was a public figure or that a public conversation regarding domestic violence was ongoing and that Plaintiff’s speech was contributing to that conversation. (See *Sipple v. Foundation for Nat. Progress* (1999) 71 Cal.App.4th 226, 239-240 [speech concerning politician who capitalized on domestic violence issues “while allegedly committing violence against his former wives” was speech in support of a public issue].) Defendant’s filing of a DVRO request was protected activity, but Defendant has failed to meet her burden to show that the other conduct alleged in Plaintiff’s Complaint was also protected activity. Defendant seeks relief based on allegations of both protected and unprotected activity. So the second step is reached. (See *Baral, supra*, 1 Cal.5th at p. 396.)

B. Second Step of the Analysis

“If the Court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim *based on protected activity* is legally sufficient and factually substantiated.” (*Baral, supra*, 1 Cal.5th at p. 396, emphasis added.) As explained above, the challenged claim based on protected activity in Plaintiff’s complaint is the filing of a DVRO request.

In order to meet its burden to defeat a defendant’s special motion to strike, a plaintiff “must demonstrate that the [challenged claims are] both legally sufficient and

supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” (*Soukop v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291.) The Court may not weigh credibility or comparative strength of the evidence; the Court must consider the defendant’s evidence only to determine if it defeats the plaintiff’s showing as a matter of law. (See *id.* at p. 291.) “In making this assessment it is the Court’s responsibility ... to accept as true the evidence favoring the plaintiff The plaintiff need only establish that his or her claim has ‘minimal merit’ to avoid being stricken as a SLAPP.” (*Ibid.*, internal quotations and citations omitted.)

Defendant argues that Plaintiff fails to show minimal merit because “the breach of contract allegation is really disguised as a defamation cause of action, although not explicitly stated,” as is the “entire alleged common count.” (Motion, pp. 15, 16.) However, Plaintiff states that Plaintiff and Defendant signed a settlement agreement in which Defendant agreed to release all her claims against Plaintiff. (Complaint, ¶ 6.) Plaintiff further states that Defendant violated the settlement agreement by filing a DVRO petition. (Complaint, ¶ 12.) “[G]enerally speaking a party can ‘validly contract[] not to speak or petition’ and thereby ‘waive[] the right to the anti-SLAPP statute’s protection in the event he or she later breaches that contract.’” (*Olson v. Doe* (2022) 12 Cal.5th 669, 686, quoting *Navellier v. Sletten*, *supra*, at p. 94.) Accordingly, the Court rejects this argument.

Defendant also argues that her inclusion of the settlement agreement as an exhibit was explicitly allowed by the terms of the settlement agreement. However, Plaintiff’s Complaint alleges that Defendant’s act of filing of a DVRO request itself violated the parties’ settlement agreement, not necessarily the act of including the settlement agreement as an exhibit to the DVRO request. Defendant’s argument thus does not reach the crux of Plaintiff’s allegation and is inapposite.

Defendant further argues that the conduct alleged in Plaintiff’s Complaint was statements made in furtherance of her right to petition and thus protected by litigation privilege. However, “the litigation privilege does not necessarily bar liability for breach of contract claims. Application of the privilege requires consideration of whether doing so would further the policies underlying the privilege.” (*Vivian v. Labrucherie* (2013) 214 Cal.App.4th 267, 276.) “[T]he purpose of the litigation privilege is to ensure free access to the Courts, promote complete and truthful testimony, encourage zealous advocacy, give finality to judgments, and avoid unending litigation. [Citation.]” (*Wentland v. Wass* (2005) 126 Cal.App.4th 1484, 1492 (*Wentland*)). As explained above, Plaintiff alleges Defendant validly contracted to waive her claims against Plaintiff and violated the contract by filing a DVRO petition. Here, like in *Wentland*, “this cause of action is not based on allegedly wrongful conduct during litigation[.]...Rather, it is based on breach of a separate promise independent of the litigation...This breach was not simply a communication, but also wrongful conduct or performance under the contract.” (*Id.* at p. 1494.) Application of litigation privilege here, as in *Wentland*, would “frustrate the purpose” of parties’ agreement. (*Ibid.*) Thus, litigation privilege would not bar Plaintiff’s breach of contract claim.

Defendant also argues that common interest privilege protects Defendant from

liability and thus defeats Plaintiff's claims. "[A] communication, without malice, to a person interested therein, (1) by one who is also interested, or (2) by one who stands in such a relation to the person interested as to afford a reasonable ground for supposing the motive for the communication to be innocent, or (3) who is requested by the person interested to give the information" is privileged. (Code Civ. Proc., § 47, subd. (c).) Defendant does not explain how the conduct alleged to be protected activity (the filing of the DVRO petition) fits into any of the above categories. Defendant argues that Defendant "was an interested party as a domestic abuse survivor by Plaintiff on numerous occasions ... communicated only to those who stood in such a relation to Defendant to show that Defendant communicated only for the purpose of protecting herself and other students ... and ... only communicated to those who sought the information." (Motion, p. 17.) Defendant has not shown how common interest privilege would apply to Defendant's act of filing a DVRO petition, which as explained above, is the only conduct alleged in Plaintiff's Complaint that can be considered protected activity and other conduct alleged must be disregarded at the second step.

Plaintiff has met the burden to show "minimal merit" of the breach of contract claim by alleging that Defendant pursued a legal claim against Plaintiff after signing a settlement agreement.²

"To prevail on a common count for money had and received, the plaintiff must prove that the defendant is indebted to the plaintiff for money the defendant received for the use and benefit of the plaintiff. In an action on an express contract, a claim for money had and received is permitted where there has been a total failure of consideration. Failure of consideration is the failure to execute a promise, the performance of which has been exchanged for performance by the other party." (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 230, internal quotation marks and citations omitted.) Here, Plaintiff's Complaint alleges that Plaintiff transferred \$3,000 and a ring to Defendant in accordance with the parties' settlement agreement, Defendant violated the settlement agreement by filing a DVRO request, and Defendant retained the \$3,000 and ring. (Complaint, ¶¶ 11, 28-29.) Plaintiff thus argues that Defendant is indebted to Plaintiff for the \$3,000 and the ring. Without resolving evidentiary conflicts and accepting Plaintiff's facts as true (see *Baral, supra*, at pp. 384-385), Plaintiff has met the burden to show the claim for money had and received is legally sufficient and factually substantiated.

Accordingly, as Plaintiff has met the burden at the second step to demonstrate that the challenged claims have "minimal merit," Defendant's anti-SLAPP motion is **DENIED.**

² Defendant also argues that parties cannot validly contract to waive the right to file a DVRO request. However, this argument was made for the first time on reply and as explained above, cannot be considered by this Court. (See *Jay v. Mahaffey, supra*, 218 Cal.App.4th 1522, 1537-1538.)

C. Request for Attorneys' Fees

Code of Civil Procedure section 425.16, subdivision (c) provides that “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs. If the Court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the Court shall award costs and reasonable attorney’s fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.” (Code Civ. Proc., § 425.16, subd. (c).) Here, because the Motion is denied, Defendant’s request for fees is also **DENIED**.

Conclusion & Order

After carefully considering all the papers and the record and the arguments of counsel, and in the exercise of its broad discretion, the Court **DENIES** Defendant’s anti-SLAPP motion and **DENIES** Defendant’s accompanying requests for fees.

SO ORDERED.

Date: September 4, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 4

Case Name: *Shan Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

See ORDER above. (At the request of the moving party, this Motion is OFF CALENDAR.)

Line 5

Case Name: *Swaminathan Nandakumar, et al. v. David Plagens, et al.*

Case No.: 22CV397444

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Cross-Complainants David Plagens and Lisa Plagens (“Cross-Complainants” or “Plagens Cross-Complainants” or “Plagens”) move to enforce and clarify the Court’s May 22, 2026 Protective Order and related discovery Order regarding Cross-Defendants Swaminathan Nandakumar and Rekha Nandakumar (“Cross-Defendants” or “Nandakumar Cross-Defendants” or “Nandakumars”) and for sanctions. Notice of Motion (the “Motion”) at 1:19-27. (filed: July 13, 2026).

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Facts

After reviewing all the moving and opposition papers, including their supporting declarations and their voluminous exhibits, and the record, the Court finds the following facts.

On May 13, 2026, the Court granted the Plagens Cross-Complainants’ motions to compel and ordered the Nandakumar Cross-Defendants to produce all responsive, non-privileged documents at or before their depositions scheduled for May 26 and May 29, 2026.

On May 19, 2026, the Nandakumar Cross-Defendants advised the Plagens Cross-Complainants that the security camera footage to be produced under the May 13, 2026 order was password-protected with special duplication requirements. So the Nandakumar Cross-Defendants offered two alternatives for production:

(1) a neutral e-discovery vendor would process the footage and produce digital copies to both sides within six to ten business days, with a short extension of the production deadline and a protective order in place; or

(2) the Nandakumars would immediately make the hardware itself available for the Plagens to download and process at their own expense, with pickup that week and return by June 1, 2026, again subject to a protective order.

Decl. of Austin L. Houvener in Support of Opposition (“Houvener Decl.”) at ¶ 3 & Ex. A

thereto.

The Plagens Cross-Complainants rejected the vendor option and demanded production of the raw materials by the deposition date. Their counsel responded that the Nandakumars' objections had been waived, that all objections have been waived, "including any ability to impose conditions on production," and that the processing timeline was a "self-created delay" that would not extend the deadline. They demanded production of the raw materials by the deposition date. *Id.* at ¶ 4.

On May 21, 2026, the Nandakumar Cross-Defendants filed an ex parte application for a discovery Protective Order governing the inspection, copying, dissemination, retention, and destruction of the residential security camera footage. *Id.* at ¶ 5.

On May 22, 2026, the Court granted that ex parte application and issued its Protective Order regarding this discovery. (the "Order Granting Ex Parte Application for Protective Order (filed: May 22, 2026) (hereinafter, the "May 22, 2026 Protective Order").

It is precisely this May 22, 2026 Protective Order regarding discovery of the residential security camera footage that this Motion seeks to "enforce and clarify." Motion at 1:19-23.

The May 22, 2026 Protective Order regarding discovery states, *inter alia*:

"Defendants may retrieve, inspect, and copy the hard drives and DVR equipment beginning at 10:00 a.m. on Friday, May 22, 2026 at the offices of Rossi, Hamerslough, Reischl & Chuck, 1960 The Alameda, Suite 200, San Jose, California 95126."

May 22, 2026 Protective Order at ¶ 4. At the end that paragraph 4, the Court struck the language "at Defendants' expense" that had been proposed by the Nandakumar Cross-Defendants. Because the Court struck that language in the Protective Order on the issue of which party would bear the cost, this issue is *not decided by* the May 22, 2026 Protective Order but rather is governed by the relevant statutory provision of the Code of Civil Procedure. *See* C.C.P. § 2031.280(e), discussed below.

The Court also replace the return date of the produced materials that had been proposed by the Nandakumar Cross-Defendants of "June 1, 2026," with a requirement that all hard drives and DVR equipment be returned "within 60 days after the final resolution of this litigation." May 22, 2026 Protective Order at ¶ 5.

The Nandakumar Cross-Defendants immediately complied with May 22, 2026 Protective Order by later that same day that the Protective Order was issued, on May 22, 2026, made the equipment including the DVR unit and hard drives available to the Plagens Cross-Complainants at the designated location for retrieval—the Ross law firm—and by providing comprehensive access instructions and detailed list of materials produced. Houvener Decl. at ¶ 7; Declaration of Missy M. Cornejo in Support of Opposition ("Cornejo Decl.") at ¶¶ 3-8 & Exhibits A, B, and C thereto.

Indeed, the Plagens' counsel (Thompson Hine LLP) confirmed receipt of comprehensive access instructions and detailed list of materials produced, thanked the Rossi Firm (then Nandakumar Cross-Defendants' counsel) for remaining open until 5:00 p.m. on a holiday weekend, and sent a representative from Thompson Hine LLP, who executed the written receipt and chain-of-custody form and took possession of the materials on May 22-23, 2026. Cornejo Decl. at ¶¶8-10.

The equipment remained in the custody of Cross-Complainants' then-counsel Thompson Hine LLP from May 23 through June 25, 2026. *Id.* at ¶ 10. The Plagens' own chain-of-custody exhibit reflects that on May 23, 2026 the equipment was in the hands of Thompson Hine LLP, and that it remained in that firm's custody until June 25, 2026, when Thompson Hine shipped it by FedEx to the Rossi Firm. *Id.*

Thompson Hine shipped the materials back to the Rossi Firm on June 25, 2026 after Thompson Hine withdrew as counsel for the Plagens Cross-Complainants. Houvener Decl. at ¶ 9.

On June 30, 2026, the Plagens wrote to the Rossi firm regarding getting access to the materials, including their position regarding costs incurred to date. Houvener Decl. at ¶ 10 and Ex. D thereto.

The Nandakumar's lawyer Houvener promptly replied the next day on July 1, 2026, stating that the parties remain bound by the May 22, 2026 Protective Order, that the Plagens can pick up the materials from the Rossi firm, and asked the Plagens to "contact [Houvener] to arrange a mutually convenient date and time for pickup." Houvener Decl. at ¶ 11 & Ex. E thereto. Among other things, the Nandakumar Cross-Defendants proposed a return date for the materials of August 21, 2026, and reiterated their position that the Plagens "bear their own costs of accessing and extracting the data"—an issue (as explained above) that the Court did *not* decide in the May 22, 2026 Protective Order but rather is governed by the relevant statutory provision of the Code of Civil Procedure. *See* C.C.P. § 2031.280(e), discussed below.

That same day, on July 1, 2026, the Plagens Cross-Complainants replied that they "do not agree to Plaintiffs/Cross-Defendants' proposed return deadline, cost position, access-materials position, or any condition that is not contained in the Court's May 22, 2026 Order." Houvener Decl. at ¶ 12 and Ex. F thereto.

Next, on July 13, 2026, Cross-Complainants filed this Motion to "enforce and clarify" the May 22, 2026 Protective Order. Motion at 1:19-22

II. Analysis of the Motion to "Enforce and Clarify" the May 22, 2026 Protective Order

A. Paragraph 4 of the May 22, 2026 Protective Order Is Time- and-Place-Specific Authorization That Has Been Performed.

Paragraph 4 of the May 22, 2026 Protective Order, by its plain text, authorizes a

specific retrieval event on a specific date at a specific address. It states that the Plagens “may retrieve, inspect, and copy the hard drives and DVR equipment beginning at 10:00 a.m. on Friday, May 22, 2026 at the offices of Rossi, Hamerslough, Reischl & Chuck, 1960 The Alameda, Suite 200, San Jose, California 95126.” May 22, 2026 Protective Order at ¶ 4. A fatal flaw with the Plagens’ Motion to “enforce and clarify” is that all the requirements of Paragraph 4, as the Court has recounted in great detail above, were performed. Houvener Decl. at ¶ 7; “Cornejo Decl.” at ¶¶ 3-10 & Exhibits A, B, and C thereto. Accordingly, As the Court finds that the Nandakumar Cross-Defendants complied with Paragraph 4 to the letter, there is nothing for the Court to “enforce” or “clarify” now.

Nor does Paragraph 2 of the Protective Order help the Plagens’ position here. Paragraph 2 states: “ The confidential material may be used solely for purposes of this litigation and may not be disclosed to any person or entity except: (a) the parties; (b) counsel of record and their staff; (c) retained experts and consultants; and (d) court personnel.” May 22, 2026 Protective Order at ¶ 2. That permits disclosure to the parties, *not* ongoing entitlement to physical possession. Paragraph 2 is a disclosure restriction—it lists the persons to whom confidential material *may* be shown. It establishes a ceiling on dissemination, *not* a grant of possessory rights. It cannot be read to convert a one-day inspection authorization for May 22, 2026 into an unlimited right to repossession on demand.

Moreover, the Nandakumar Cross-Defendants have not refused further access to the Plagens at all. They offered it on July 1, 2026, identifying the current custodian and location, and inviting Cross-Complainants to arrange pickup. Houvener Decl. at ¶ 11 & Ex. E thereto. The parties’ dispute concerns the terms under which that access will occur—specifically, whether a return date, cost allocation, and non-alteration obligations should apply. But dispute is the subject of Cross-Defendants’ pending noticed motion to *modify* and is not properly resolved through this Motion to *enforce and clarify*.

B. Cross-Defendants Complied with the May 22, 2026 Protective Order

While the Plagens Cross-Complainants argue that the Cross-Defendants withheld access materials necessary to use the production, that argument is belied by the record. On May 22, 2026, Cross-Defendants provided passwords, boot procedures, file format information, user guides with export instructions, and free viewer software. Every category of ‘access material’ the Motion says was withheld was supplied on May 21 and May 22, 2026: including, ‘software/viewer information’ (the free Amcrest viewer, by hyperlink, plus written confirmation that no other software exists); ‘credentials’ and ‘passwords’ (the administrator log-in symbol and the means of reaching the Admin menu); ‘export instructions’ (page 87 of the User Guide); ‘file index’ and ‘camera/feed identifiers, date/time ranges’ (the drive-by-drive inventory and the unit’s built-in search by month, day, and year); and ‘access protocol’ (the boot procedure, single-drive constraint, and hardware needed to install the drives). Cornejo Decl. at ¶¶ 3-7 and Exhibits A, B, and C thereto.

After reviewing all the papers and the record, the Court finds that the Nandakumar Cross-Defendants produced the equipment on the date and at the location specified in the Protective Order, together with all materials in their possession necessary to access the footage. Hence, as Cross-Defendants complied with the plain terms of May 22, 2026 Protective Order, there is nothing for the Court to “enforce and clarify” now.

C. Cost-Shifting Principles Support Denial of this Motion.

At bottom, what the Plagens Cross-Complainants ask for is an Order that Cross-Defendants must bear the cost of rendering the approximately 64 terabytes of data into searchable, indexed, exportable form. Reply at 7:23-8:19; Motion, Requested Relief at ¶ 12 (citing, *inter alia*) Declaration of David Plagens in Support of Motion at ¶ 31.

But California law places that burden on the demanding party—here, the Plagens Cross-Complainants. Code of Civil Procedure Section 2031.280 states: “If necessary, the responding party *at the reasonable expense of the demanding party* shall, through detection devices, translate any data compilations included in the demand into reasonably usable form.” C.C.P. § 2031.280(e) (emphasis added). At well put by the Sixth District Court of Appeal: “We need not engage in protracted statutory analysis because its plain language clearly states that if translation is necessary, the responding party must do it at the demanding party’s reasonable expense.” *Toshiba America Elec. Components, Inc. v. Superior Court* (2004) 124 Cal.App.4th 762, 769.

Here, Cross-Defendants offered, before production, to have a neutral vendor process the footage into usable form with the cost shared or allocated to Cross-Complainants. Cross-Complainants rejected that option and demanded the raw data immediately. Having obtained precisely the production they insisted upon, Cross-Complainants cannot now declare it noncompliant and charge Cross-Defendants for the alternative they refused.

Cross-Complainants suggest that the Court’s striking of the words “at Defendants’ expense” at the end of Paragraph 4 of the Protective Order affirmatively shifted these costs to the Nandakumar Cross-Defendants. Reply at 8:12-19. That argument fails. Striking a clause that would have expressly imposed costs on the Plagens Cross-Complainants does not impose them on Nandakumar Cross-Defendants. Striking that language *in* Protective Order means that this issue is not resolved *by* the Protective Order. Which leaves in place the standard statutory provision on who pays this expense: “the demanding party”—here, the Plagens. C.C.P. § 2031.280(e), *supra*.

D. Sanctions Are Not Warranted

Code of Civil Procedure Section 2023.030(a) authorizes monetary sanctions for misuse of the discovery process. C.C.P. 2023.030(a). Disobeying a court order to provide discovery constitutes misuse. C.C.P. § 2023.010.

Here, as the Court has found above that Cross-Defendants complied with the January 22, 2026 Protective Order, they did not commit any misuse of the discovery

process. They produced the equipment on the ordered date, supplied every access material in their possession, offered a vendor-prepared alternative that was refused, identified the current custodian on request, offered further access, invited counter-proposals for an amended order, and when the parties could not agree, filed a noticed motion rather than acting unilaterally. This is not discovery misuse.

Accordingly, as the Court finds that Cross-Defendants did not misuse the discovery process here, Cross-Complainants request for monetary sanctions under Section 2023.030(a) is **DENIED**.

E. This “Clarification” Request Seeks Modification of the Protective Order Without Proper Notice or Good Cause

Cross-Complainants request that the Court clarify the Protective Order to limit confidentiality protection to footage actually depicting minor children or genuinely private residential activities and to authorize disclosure to governmental agencies and law enforcement whenever Cross-Complainants deem it reasonably necessary. Motion, Requested Relief at ¶¶ 10-11.

But those requests do not *clarify* the May 22, 2026 Protective Order, they *rewrite* it. “ Paragraph 1 of the Order designates ‘[a]ll security camera footage, DVR recordings, hard drive contents, copies, extracts, screenshots, and derivative materials produced by Plaintiffs’ as CONFIDENTIAL.” May 22, 2026 Protective Order at ¶ 1. It contains no content-based carve-out and is not limited to footage depicting minors. Here, Cross-Complainants seek to narrow that designation and create a broad exception for third-party disclosure. That is a modification requiring a showing of good cause. Cross-Complainants offer no such showing and provide no specific justification for the modifications they seek now. Request denied.

The request for reciprocal protection of Cross-Complainants’ own materials likewise fails procedurally. Cross-Complainants have never moved for a protective order as to their own productions. Relief cannot be obtained by asking the Court to extend to an order entered on another party’s application for a protective order regarding other materials.

III. Conclusion & Order

The Plagens Cross-Complainants received exactly what they demanded: immediate access to the raw data with all access materials necessary to use it. They kept the equipment for more than a month. They now seek a second production in a different format at the Nandakumar Cross-Defendants’ expense, plus sanctions. The Plagens do not seek to “enforce and clarify” the Protective Order, they seek to rewrite it.

The May 22, 2026 Protective Order required Cross-Defendants to make the hard drives and DVR equipment available for retrieval, inspection, and copying at a specified time and place. Cross-Defendants did that; they complied. The Protective Order did not require Cross-Defendants to provide a processed, searchable copy at their expense, allow

indefinite retention without a return date, or accept responsibility for damage occurring while the equipment was in Cross-Complainants' counsel's custody. Cross-Complainants seek relief in this Motion that is *beyond* what the Protective Order requires.

Accordingly, the Motion of Cross-Complainants David Plagens and Lisa Plagens move to enforce and clarify the Court's May 22, 2026 Protective Order is **DENIED** in all respects.

SO ORDERED.

Date: September 4, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 6

Case Name: *Yi Wei v. Tina Tipping Hsu*

Case No.: 24CV451814

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Tina Tipping Hsu (“Defendant”) moves under Code of Civil Procedure Section 473(d) for the Court to correct a clerical error in its Order filed January 22, 2026. Notice of Motion (the “Motion”) at 2:4-5 (filed: March 2, 2026). The Motion is made on the ground that the January 22, 2026 Order reflected the incorrect amount of attorneys’ fees awarded during oral argument of the October 1, 2025 hearing, which transcript is attached to the Declaration of Marisella T. Prada (“Prada Declaration”) in Support of the Motion. *Id.* at 1:6-9.

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background Facts & Procedural Posture

The general background facts and procedural history of this case as set forth in great detail in the Court’s January 22, 2026 Order are incorporated by reference, confirmed in full now, and will not be repeated here. *See* Order 2:25-5:25 (“Factual and Procedural Background”) (filed: Jan. 22, 2026).

That January 22, 2026 Order, which Defendant Hsu now moves the Court to correct a clerical mistake in regarding the amounts of attorneys’ fees awarded, memorialized rulings on five separate Motions *decided at the October 1, 2025 hearing* in Department 16 by:

1. Denying Plaintiff’s Motion for Reconsideration of Order Granting Defendant’s Special Motion to Strike (C.C.P. § 435.16);
2. Granting Defendant’s Motion for Statutory Attorneys’ Fees;
3. Sustaining Defendant’s Demurrer to Plaintiff’s First Amended Complaint;
4. Granting Defendant’s Motion to Expunge Lis Pendens; and
5. Advancing for hearing Defendant’s Motion for Sanctions *and* Denying that Motion.

Order at 1:13-21, 6:1-10:28 (filed: Jan. 22, 2026).

Specifically, the plain text of the official transcript of the October 1, 2025 hearing shows beyond any doubt that the Court at that hearing, after hearing argument from all counsel, *decided* that:

1. the amount of attorneys' fees that the Court awarded to Defendant as prevailing party on the Anti-SLAPP motion is **\$26,614.75, and**
2. the separate amount of attorneys' fees that the Court awarded to Defendant as prevailing party on the motion to expunge the *lis pendens* is **\$9,883.75.**

Prada Declaration, Ex. 1, Certified Transcript of Oct. 1, 2025 Hearing at 14:7-17 (on the award of attorneys' fees on the Anti-SLAPP motion, THE COURT: "The court is not going to include in the award the [\$495] first filing fee. So the [**\$26,809.75**] should be reduced by the amount of **\$495**, I believe, and that would leave a balance of [**\$26,314.75**. Then the amount of [**\$ 9,883.75**] are additional fees for the expungement of the *lis pendens*, and is required by statute those fees **are also granted.**") (emphasis added).

These rulings on amounts of attorneys' fees awarded on the record by this Court in favor of Defendant and against Plaintiff on these separate and distinct motions—\$26,314.75 for the Anti-SLAPP Motion *and* \$9,883.75 for the *lis pendens* motion—are clear, unmistakable, and final.

Yet when memorializing those attorney fee awards in the Court's January 22, 2026 Order, the Court made a clerical cut-and-paste mistake by switching and awarding Defendant **\$9,883.75 in fees for Anti-SLAPP Motion** when it actually awarded Defendant **\$9,883.75 in fees for the *Lis Pendens* Motion** at the October 1, 2025 hearing. Same amount, wrong motion. *Compare* Order at 8:7-12 (filed Jan. 22, 2026) with Prada Declaration, Ex. 1, Certified Transcript of Oct. 1, 2025 Hearing at 14:7-17. That is a clear and obvious clerical error that Court will correct now in this Order.

Legal Standard on Section 473(d) Motion

Code of Civil Procedure section 473(d) authorizes a court to correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed. (§ 473.) The critical distinction is between an error in rendering the judgment and an error in recording the judgment rendered. (*Machado v. Myers* (2019) 39 Cal.App.5th 779; *Conservatorship of Tobias* (1989) 208 Cal.App.3d 1031, 1035.)

An error is clerical when the signed order does not express the court's actual intention, even if the mistake was made by the court itself. (*Conservatorship of Tobias* (1989) 208 Cal.App.3d 1031, 1035.) The moving party bears the burden of demonstrating that the written order fails to reflect the court's actual oral pronouncement. (*Machado v. Myers* (2019) 39 Cal.App.5th 779.)

Analysis of the Motion

I. The Court Made a Clerical Error in the January 22, 2026 Order when it inadvertently switched and awarded Defendant \$9,883.75 in fees for Anti-SLAPP Motion when it actually awarded \$9,883.75 in fees for the *Lis Pendens* Motion at the October 1, 2025 hearing.

The Court finds that the discrepancy between the amounts that the Court decided and awarded Defendant at the October 1, 2025 hearing in attorneys' fees for the separate Anti-SLAPP and *lis pendens* motions is a clerical error correctable now under Code of Civil Procedure section 473(d). Multiple factors support this conclusion.

First, the certified October 1, 2025 hearing transcript unambiguously establishes that the Court, after identifying and correcting confusion between two fee memoranda, expressly directed an Anti-SLAPP fee award of \$26,314.75. The transcript shows the Court performing arithmetic on the record, stating the resulting figure, and confirming that the fee award would be made. This is not fragmentary or tentative language; it is a completed ruling.

Second, the January 22, 2026 written order's use of the \$9,883.75 figure for the Anti-SLAPP motion is powerful evidence of recording error rather than deliberate reconsideration. This amount is not a newly calculated figure or a partial reduction reflecting independent analysis; it is the *exact amount* of fees the Court had just identified on October 1 as being awarded on a different motion entirely—the *lis pendens* motion.. The numerical identity strongly suggests inadvertent transposition rather than deliberate new adjudication.

Third, if the Court had independently redetermined the Anti-SLAPP fee amount after October 1, one would expect either an explanation for the change or, at minimum, a different dollar figure not *identical* to the amount the Court had expressly identified as the fee award for the *lis pendens* motion.

Fourth, the treatment of the *lis pendens* fees in the written order corroborates the conclusion of clerical error. The October 1 transcript shows the Court expressly granting those fees: \$ 9,883.75, which the Court awarded after explaining on the record on October 1, 2025 that they are "required by statute." Prada Declaration, Ex. 1, Certified Transcript of Oct. 1, 2025 Hearing at 14:16, *supra*.

Plaintiff argues that the written order contains additional findings and analysis not present in the oral ruling, including an express finding regarding the reasonableness of the hourly rate and exclusions of certain time entries. While these additions demonstrate that the drafter engaged with the fee materials when preparing the written order, they do not establish that the Court deliberately chose to award \$9,883.75 for the Anti-SLAPP motion. The dispositive question is whether the challenged difference in amount was a deliberate new adjudication or an error in recording the adjudication already made. (*Machado v. Myers* (2019) 39 Cal.App.5th 779.) The official October 1, 2025 hearing transcript's sequence—in which the Court identified the \$9,883.75 figure as belonging to

the *lis pendens* request and then calculated a different amount for the Anti-SLAPP motion—does not give rise any reasonable inference that the Court months later in the January 22, 2026 Order just happened to reason its way back to the same dollar figure of \$9,883.75. That’s not a coincidence; that’s a clear clerical mistake.

Accordingly, after carefully reviewing the record, and in the broad exercise of its discretion, the Court finds that the discrepancy between the \$26,314.75 Anti-SLAPP fee award stated in the October 1, 2025 oral ruling and the \$9,883.75 awarded in the January 22, 2026 written order constitutes a clerical error correctable under Code of Civil Procedure section 473(d). The written order failed to accurately record the decision that the Court actually directed on these fee awards at the October 1, 2025 hearing.

II. The January 22, 2026 Order Is Corrected Now to Reflect that the Court Awarded Defendant \$26,314.75 in fees for the Anti-SLAPP Motion at the October 1, 2025 hearing.

Having determined that the written order contains a clerical error and must be corrected to conform to the oral ruling, the Court addresses whether Defendant is entitled to correction of the written order to reflect the \$26,314.75 Anti-SLAPP attorney fees amount directed at the October 1, 2025 hearing, and whether that amount is substantively proper under Code of Civil Procedure section 425.16(c). The answer is Yes and Yes.

Under Code of Civil Procedure section 425.16(c)(1), a prevailing anti-SLAPP defendant is entitled to recover attorney fees and costs. (§ 425.16.) The hearing record establishes that the Court confirmed the Anti-SLAPP request at \$26,809.75, identified and excluded only the \$495 first-appearance fee because it was not related to the Anti-SLAPP motion, and directed that Plaintiff pay Defendant \$26,314.75 as Defendant’s fees for the Anti-SLAPP motion. Prada Declaration, Ex. 1, Certified Transcript of Oct. 1, 2025 Hearing at 14:7-17.

That calculation reflects a valid exercise of discretion and the Court’s final decision on this point. The Court accepted Defendant’s fee request and excluded only the single item it determined was not causally related to the Anti-SLAPP motion. The record does not reflect that Plaintiff raised any substantive objection at the October 1 hearing to the \$26,314.75 figure on grounds of hourly rate, necessity, or block-billing.

Accordingly, the Court finds that the amount of \$26,314.75 is substantively proper under Code of Civil Procedure section 425.16(c) for the award of fees to Defendant on the ANTI-SLAPP Motion. So under Section 473(d), Defendant is entitled to correction of the written order to reflect this amount.

III. The January 22, 2026 Order Is Corrected Now to Reflect that the Court Awarded Defendant \$ 9,883.75 in fees for the *Lis Pendens* Motion at the October 1, 2025 hearing.

As shown above, the certified transcript of the October 1, 2025 hearing shows the that the Court express decided and awarded Defendant fees in the amount of \$ 9,883.75

for the *lis pendens* motion. Prada Declaration, Ex. 1, Certified Transcript of Oct. 1, 2025 Hearing at 14:14-17.

The January 22, 2026 written order, by mistake, left the *lis pendens* fees “without prejudice to any other requests” (Order at p. 8, n. 2) rather than stating the fact that the Court already granted them in the exact amount of \$9,883.75 to Defendant at October 1, 2025 hearing. Prada Declaration, Ex. 1, Certified Transcript of Oct. 1, 2025 Hearing at 14:14-17. the granting them. Order at 8, n. 2 For the same reasons discussed above regarding the Anti-SLAPP fees, this departure from the oral ruling constitutes a clerical error. Accordingly, the Court rules that the January 22, 2026 the written order should be corrected to reflect that the *lis pendens* expungement fees in the amount of \$9,883.75 were granted to Defendant at the October 1, 2025 hearing.

Order & Conclusion

For the reasons explained above, and in the broad exercise of its discretion, the Court **GRANTS** Defendant’s Motion in all respects. Specifically, the January 22, 2026 written Order is now corrected *nunc pro tunc*, effective as of January 22, 2026, as follows:

1. Defendant’s Motion for Statutory Attorneys’ Fees and Costs on the Anti-SLAPP Motion is **GRANTED** to Defendant in the amount of **\$26,314.75** (which equals the \$26,809.75 initially requested by Defendant, reduced by the \$495.00 first-appearance fee excluded by the Court, resulting in a net award of \$26,314.75); *and*
2. Defendant’s request for statutory attorneys’ fees and costs on the Motion to Expunge the *Lis Pendens* is **GRANTED** to Defendant in the amount of **\$9,883.75**.

All other provisions of the January 22, 2026 written Order remain in full force and effect.

SO ORDERED.

Date: September 4, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 7

Case Name: *Michael Minh Vanderzyl v. Bill Wong, et al.*

Case No.: 25CV466037

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Michael Minh Vanderzyl (“Plaintiff”) moves under Code of Civil Procedure Section 473(d) to set aside the Order of Dismissal dated and entered on April 23, 2026 which was made without prejudice and subject to Code of Civil Procedure Section 664.6 (the “Section 664.6 Dismissal”). Notice of Motion (the “Motion”) at 1:22-25 (filed: June 18, 2026). This Section 473(d) Motion is made on the ground that the Section 664.6 Dismissal is void on its face because the case did not settle and *all* parties never stipulated in writing or orally that the case settled. *Id.* at 1:25-27

The Motion came on for hearing on September 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

On April 15, 2026, the Court held a further Case Management Conference (“CMC”) in this case. There, attorney Veronica Murayama specially appeared for Plaintiff on behalf of Plaintiff’s counsel of record Cynthia Allred; attorney Alan Sherwood appeared for Defendants Bill Bong and Jennifer Wong (“Defendants”).

At the outset of that CMC, upon attorney Sherwood advising the Court orally that a settlement had been reached, the Court exercised its discretion to dismiss this case without prejudice Code of Civil Procedure Section 664.6. However, upon counsel for all parties next advising the Court at that CMC that the settlement had not yet been reduced to a written agreement, and so perhaps was not yet final after all, the Court assured the parties that if the settlement was not finalized and reduced to writing soon then the Court would set aside the Section 664.6 Dismissal and reinstate this case promptly to active status.

Unfortunately, as Plaintiff advised the Court shortly after the April 15, 2026 CMC when he promptly filed this unopposed Motion, the parties have not been able to settle this case after all. Plaintiff is still negotiating with State Farm, an insurer of Defendants. So a settlement agreement has in fact not yet been finalized let alone reduced to writing.

Given this unfortunate development and the Court’s promise to set aside the Section 664.6 dismissal and promptly reinstate this case to active status if the settlement was not finalized and reduced to writing soon, the Court next on July 16, 2026 granted

Plaintiff's unopposed ex parte application to shorten time on the noticed hearing, thereby advancing the hearing on this Motion to today, September 4, 2026.

Defendants do not oppose the Motion.

Legal Standard

Code of Civil Procedure Section 473(d) authorizes this Court on motion of either party after notice to set aside any void judgment or judgment. C.C.P. § 473(d). The motion must be brought within six months of the order of dismissal. *Ramos v. Homeward Residential, Inc.* (2014) 223 Cal. App. 4th 1434, 1440. An order is void on its face when the invalidity is apparent upon an inspection of the record. *Id.*

Analysis of the Motion

Here, upon the Court's inspection of the record, including the Declarations filed in Support of the Motion by counsel for *both* Plaintiff and Defendants who appeared the April 15, 2026 CMC, the Court finds the Section 664.6 Dismissal was void on its face because there was, in fact, *no* stipulation reached by the parties that the case had settled. Murayama Decl. at ¶ 3; Sherwood Decl. at ¶ 3. While the Court might have been told by Defense counsel during that hearing that a settlement was reached, Plaintiff is quite right that *Plaintiff's* counsel during that hearing did not stipulate orally before the Court—as Section 664.6 requires—that a settlement was reached. As such, the record shows that the Section 664.6 Dismissal in this case is void on its face.

Plaintiff timely filed this Motion to set aside this dismissal on June 18, 2026, well within six months of the April 23, 2026 date of the Section 664.6 Dismissal.

Moreover, Plaintiff persuasively argues in his moving papers that the Court should exercise its broad discretion under Section 473(d) to set aside this Section 664.6 Dismissal because, unfortunately, no final settlement agreement has been reached or signed by the parties, *and* the Court did promise during the April 15, 2026 CMC that if the settlement were not finalized and reduced to writing soon then the Court would set aside the Section 664.6 Dismissal and reinstate this case promptly to active status. Motion at 1:25-27, 3:23-5:4. The Court will keep its word.

For all these reasons, Plaintiff asks that the Court set aside the Dismissal, reinstate the case to active status, and set a further Case Management conference.

Defendants do not argue otherwise. Indeed, Defendants have not opposed the Motion at all, which the Court views as Defendants conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

Accordingly, Plaintiff's Motion is **GRANTED** in all respects.

Conclusion & Order

Upon inspection of the record, including but not limited to the moving papers and supporting Declarations, and in the broad exercise of its discretion, the Court **GRANTS** the Motion of Plaintiff Vanderzyl in all respects. Specifically, the Court **ORDERS**:

1. The Order of Dismissal dated and entered on April 23, 2026 is **SET ASIDE**;
2. This Case No. 25CV466037 is **REINSTATED** to active status now; *and*
3. The Court **SETS** a further Case Management Conference for December 2, 2026, at 10:00 am in Department 16.³

SO ORDERED.

Date: September 4, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

³ If a settlement agreement should be reached in this case before the December 2, 2026 CMC, the parties should promptly file a Notice of Settlement and Request for Dismissal.

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Line 10

Line 11

Line 12

Line 13

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